

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE**

Office of City Clerk

December 22, 2010

Due to the holiday season, the regularly scheduled December 27, 2010 meeting of the Governing Body was instead held on this date beginning at 5:30 p.m. in Council Chambers. Present were: MAYOR - Richard L. Kaysen; COUNCIL MEMBERS - Ms. Ash, Mr. Brown, Ms. Broyles, Ms. Case, Mr. Collins, Dr. Rinne, Mr. Pierson, Mr. Spiker and Mr. Valdez. Also present: Carol Intlekofer, City Clerk; Barb Dorr, City Treasurer, and Dan White, City Attorney. The pledge of allegiance was recited.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda.) Mr. Collins moved to Consent Agenda items, seconded by Mr. Brown. Motion carried. Voting "yes" – all members of the governing body.

[CA] Minutes from Regular Meeting of the Governing Body on December 13, 2010. Motion (per Consent Agenda) carried.

Mr. Brown moved to approve payment of vouchers as presented, seconded by Mr. Spiker. Mr. Valdez declared a conflict of interest (business interest) due to a voucher payable to radio station KYOY and vacated Council Chambers. Motion carried. Voting "yes" – all members of the governing body present in Council Chambers. Following announcement of the vote, Mr. Valdez returned to Council Chambers.

"An Ordinance amending Section 2.04.060, Meetings of the governing body, of Chapter 2.04, Mayor and City Council, of Title 2, Administration and Personnel, of the City of Cheyenne Code" -- referred to Finance Committee (sponsor - Mr. Collins).

[CA] "A Resolution declaring as surplus three (3) City-owned properties located at 515 Morrie Avenue, 916 East 5th Street and 922 East 5th Street, Cheyenne, Laramie County, Wyoming, together with all improvements thereon, and authorizing the City Clerk and City Purchasing Director to proceed with proposed sale of said properties pursuant to Wyo. Stat. § 15-1-112". Motion (per Consent Agenda) carried. (#5252)

"A Resolution designating local banks as depositories for municipal funds". Reporting for Finance Committee, Mr. Brown moved to adopt, seconded by Mr. Valdez. Mr. Collins and Mr. Spiker each declared a conflict of interest (membership on bank boards) and vacated Council Chambers. Motion carried. Voting "yes" – all members of the governing body present in Council Chambers. Following announcement of the vote, Mr. Spiker and Mr. Collins returned to Council Chambers. (#5253)

[CA] Grant Award Agreement between the Wyoming Office of Homeland Security and the Cheyenne Police Department for Law Enforcement and Terrorism Prevention Activities. Motion (per Consent Agenda) carried. (#5625)

[CA] Services Contract between the City of Cheyenne, Cheyenne Police Department, and Policy Solutions Limited to implement the Department of Justice, Office of Juvenile Justice and Delinquency Prevention Enforcing Underage Drinking Laws Discretionary Military Grant Program award. Motion (per Consent Agenda) carried. (#5626)

[CA] Cooperative Agreement between the City of Cheyenne and the Wyoming Department of Transportation for traffic signal software (partial Federal Highway Safety Improvement Program funds) -- referred to Finance Committee.

[CA] Cooperative Agreement between the City of Cheyenne and the Wyoming Department of Transportation for a Traffic Interconnect Network Element System for converting certain copper telephone lines to an Ethernet capable communications system -- referred to Finance Committee.

[CA] Consideration of RFP-02-11 for a Contract between the City of Cheyenne and Edwards General Contractors, Inc. for ADA Compliance Upgrades at the Taco John's Event Center. Motion (per Consent Agenda) carried. (#5627)

[CA] Consideration of Bid #R-15-11 for furnishing one new roll-off truck for the Sanitation Division from Peterbilt of Wyoming, Cheyenne, WY, for the cab and chassis, and Kois Brothers Equipment, Commerce City, CO, for the body (Solid Waste Management fund) -- referred to Finance Committee.

[CA] Transfer of ownership and transfer of location for a retail liquor license application filed with the City Clerk's Office for W.E. Dinneen, Inc. d/b/a [to be determined], 400 W. Lincolnway, Cheyenne, WY. (License currently held by Cheyenne 28, LLC f/d/b/a C.B. & Potts, 1650 Dell Range Boulevard, Cheyenne, Wyoming.) Motion (per Consent Agenda) carried.

[CA] Request to expand the dimensions of the current dispensing room for O'Jackson's, Inc. d/b/a Jackson's Sports Grill, 1121 Old Town Lane, Cheyenne, WY. Motion (per Consent Agenda) carried.

Appointment of John Patrick Hand, Gene Palen and Lily Clabots to the Cheyenne Historic Preservation Board, and Lindsay Ann Woznick, Gene MacDonald and Dave Teubner to the City Planning Commission. Mr. Collins moved to approve, seconded by Mr. Valdez. Motion carried. Voting "yes" -- all members of the governing body with the exception of Mayor Kaysen who did not vote (Mayoral appointment).

Reappointment of Gerry McGowen to the Cheyenne Housing Authority Board; Tony Adams and Ann Redmond Esquibel to the Personnel Commission; Lisa Burgess to the Fire Department Civil Service Commission; Jason Paiz to the Police Department Civil Service Commission; Marc Woods to the City Planning Commission, and Darin Westby and Rick Johnston to the Building Code Board of Appeals. Mr. Valdez moved to approve, seconded by

Mr. Collins. Motion carried. Voting “yes” – all members of the governing body with the exception of Mayor Kaysen who did not vote (Mayoral appointment).

Announcement was made that the Sine Die Meeting of the Governing Body will be held at 3:00 p.m., and the First Regular Meeting of the Governing Body at 3:15 p.m. on Mon., Jan. 3, 2011 in City Council Chambers, Municipal Building, 2101 O’Neil Avenue, Cheyenne, WY.

Announcement was made that due to the Sine Die and First Regular Meetings of the Governing Body on Mon., Jan. 3, 2011, the following meetings will instead be held on Tues., Jan. 4, 2011: Finance Committee will meet at 11:00 a.m., Room 122, and Vouchers meeting at Noon, Council Chambers, Municipal Building, 2101 O’Neil Avenue, Cheyenne, WY. There will be no Public Services Committee meeting on Tues., Jan. 4, 2011 at Noon as there are no items for the agenda requiring a meeting.

Under other business:

Barbara Laybourn thanked outgoing Council member Judy Case for her 12 years of service on City Council and her representation of Ward I residents. Ms. Case responded that she has enjoyed serving her constituents.

Ms. Case commented on the practice of waiving fees, and inquired about the waiver of fees associated with the new airline providing service at the Cheyenne Regional Airport with Dave Haring, Airport Manager, providing information on certain fees that have been waived on a temporary basis, which is a common practice by airports. Upon inquiry, City Attorney Dan White advised he would conduct research on the matter involving the airport fees and provide a response.

Major Dorr expressed concern with the aesthetics of the “hole in the street” on west Lincolnway (i.e. site of the downtown fire years ago) and suggested the excavation be filled in. Mayor Kaysen advised ongoing discussions concerning the site are being held, noting the City owns 1/3 of the property and a private party owns the other 2/3rds.

There being no further business to come before the governing body, Mayor Kaysen adjourned the meeting at 5:47 p.m.

Submitted by,

Carol Intlekofer, MMC
City Clerk

This notice is available in alternative, accessible formats upon request.

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